

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR TO EXECUTE A MEMORANDUM OF UNDERSTANDING WITH CHEYENNE FRONTIER DAYS, INC., FOR THE PROVISION OF PUBLIC SAFETY SERVICES DURING THE ANNUAL FRONTIER DAYS EVENTS.”

WHEREAS, Cheyenne Frontier Days (CFD) is a ten-day annual event that attracts significant attendance and increases activity throughout the City of Cheyenne;

WHEREAS, the popularity of the event requires enhanced public safety services to ensure the health and safety of participants, spectators, and the community;

WHEREAS, the City and CFD have previously entered into a Memorandum of Understanding (MOU) for the provision of such services, with compensation from CFD to cover the City’s costs;

WHEREAS, under the proposed MOU, attached hereto, CFD will continue to reimburse the City for public safety services with increased payment amounts to reflect rising service costs; and

WHEREAS, the Governing Body finds that entering into the MOU is in the best interest of the City to support a safe and successful Cheyenne Frontier Days event.

NOW, THEREFORE, BE IT RESOLVED by the Governing Body of the City of Cheyenne, Wyoming that the City is authorized to enter into a Memorandum of Understanding with Cheyenne Frontier Days, Inc. for the provision of public safety services during the Cheyenne Frontier Days events.

BE IT FURTHER RESOLVED that the Mayor is authorized to act as the City’s official representative and to execute the MOU on behalf of the City.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk

City Contract No. _____

MEMORANDUM OF UNDERSTANDING
between Cheyenne Frontier Days and
the City of Cheyenne for Public Safety Services at Frontier Park

Cheyenne Frontier Days (“CFD”) and the City of Cheyenne (“City”) hereby enter into this Memorandum of Understanding for delivery and receipt of Public Safety Services at Frontier Park (hereafter the “Agreement”) during the yearly Cheyenne Frontier Days Event held in Cheyenne, Wyoming. CFD and the City hereby agree as follows:

1. For purposes of this Agreement, the following definitions shall apply:
 - a. “Frontier Days” means the yearly event held in Cheyenne, Laramie County, Wyoming that starts approximately mid-July and runs for ten (10) consecutive days.
 - b. “Frontier Park” means the location for Frontier Days, including rodeos, carnival, night shows and other activities. Frontier Park is located immediately adjacent to Lions Park operated by the City and is bounded on the East by Carey Avenue, on the North by Kennedy Road, on the West by Hynds Boulevard, and on the South by 8th Avenue.
 - c. “Effective Date” shall be the date of the last signature is affixed to this Agreement.
2. This Agreement shall commence on the Effective Date and shall continue for five (5) years from the Effective Date.
3. The City of Cheyenne shall provide public safety related services at Frontier Park during Frontier Days in accordance with the incident action plan (including, but not limited to, a malt beverage sales and control plan) mutually agreed to by the City and CFD. Public safety related activities shall include police, fire, and emergency protection for Frontier Days as dictated by the needs of each day of the event and the unique characteristics of the activities occurring on that day. This Agreement in no way limits the discretion of the City in supplying additional City police, fire or other emergency resources including specialized groups of Cheyenne Police Department officers dedicated as bomb squads, S.W.A.T. Teams, or other law enforcement assets necessary to provide public safety at Frontier Days. While assigned to Frontier Park, City public safety personnel shall at all times remain employees of the City acting within the performance of their duties and the scope of their employment with the City and shall be under the sole supervision and control of their respective commander(s). City employees shall not act as agents of CFD. The sole responsibility of the public safety personnel while so assigned shall be to enforce the ordinances of the City and statutes of the

State of Wyoming. The duties assumed by the City, the Cheyenne Police Department, and Cheyenne Fire Rescue are duties owed to the public.

4. In exchange for public safety services provided under this Agreement, CFD agrees to pay the City the following amounts for each year of the five (5) year term:

- \$85,400.00 for 2025; – \$100,400.00 for 2028;
- \$90,400.00 for 2026; – \$105,400.00 for 2029.
- \$95,400.00 for 2027;

CFD will pay one-half of the yearly amount on or before July 1st of each year, and the balance of the outstanding amount on or before the commencement of Frontier Days each year. The payments specified in this section help offset the added public safety costs caused by Frontier Days, including for additional personnel and equipment supplied to Frontier Park. The City shall ensure that the cost for providing public safety services meets or exceeds the total amount paid by CFD each year. Any requirements imposed by the City of Cheyenne Fire Code are separate from this Agreement and any fees or additional services that may be required under the Fire Code are not subject to this Agreement. Any person seeking a permit for some activity requiring permitting under the Fire Code will pay the required fees or for the additional services.

5. The City shall be solely responsible for security and public safety functions related to the Pancake Breakfasts and Parades that are held by the City of Cheyenne during the Frontier Days event.
6. The City and CFD shall confer no later than June 15th of each year of this Agreement to assess necessary public safety measures and reach an agreement on the incident action plan for that year. Upon completion of Frontier Days each year, CFD and the City shall meet to discuss after-action planning that evaluates the efficacy of the public safety services and activities that were carried out that year.
7. The City hereby assumes sole and exclusive responsibility for any and all liability arising from police, fire, or emergency protection services provided by its employees under this agreement, as long as those services are provided within the scope of their employment. This Agreement provides no indemnification to the City by CFD regarding the actions of the City during Frontier Days.
8. CFD hereby assumes sole and exclusive responsibility for any and all liability associated with CFD volunteers, contractors, employees or agents of CFD during Frontier Days. This Agreement provides no indemnification to CFD by the City regarding the actions of the CFD volunteers, employees, contractors or agents during Frontier Days.

9. The City, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.
10. This Agreement represents the entire Agreement between the City and the CFD with respect to the subject matter herein, and all prior agreements, written or oral, are nullified and superseded hereby and neither party shall have any further rights or obligations under such superseded agreements. Each party releases the other from claims of any kind or nature rising from such superseded agreements. No change or addition to, or declaration of, any portion of this Agreement shall be valid or binding upon the parties hereto unless the same is approved in writing by the parties.
11. The invalidity or unenforceability of any particular provision of this Agreement shall be construed in all respects as if such invalid or unenforceable provisions are omitted.
12. This Agreement shall be construed and enforced under and in accordance with the laws of the State of Wyoming. Venue for any lawsuit alleging any claims arising out of, or related to, this Agreement shall be the First Judicial District Court for Laramie County, Wyoming, located in Cheyenne, Wyoming.
13. Nothing in this Agreement shall be construed as creating or giving rise to any rights in any third parties or any persons other than the parties hereto.
14. Both parties have reviewed the terms of this Agreement, arising from negotiations and discussions between the parties, each of whom had the option of being represented by legal counsel. Accordingly, no claimed ambiguity in this Agreement shall be construed against any party claimed to have drafted or proposed the language in question.
15. Neither Party shall be liable pursuant to this Agreement if a Party is unable to perform pursuant to this Agreement from causes beyond the Party's reasonable control including, but not limited to, acts of God, strikes or other labor disturbances, equipment failure, delays in transportation, inability to obtain fuel, material, or parts, war, acts of terrorism, riots, epidemics, floods, fires, unusually

severe weather conditions, accidents, insufficiency of government funding, or other contingencies, the non-occurrence of which was a basic assumption of which the Agreement was made.

16. This Agreement may be terminated by either party with or without cause, upon thirty (30) days written notice, through the Governing Body for the City and the Board of Trustees for CFD.

IN WITNESS WHEREOF, the parties have executed this Agreement to be effective on the date of the last signature affixed hereto.

CHEYENNE FRONTIER DAYS

By: 
Date: 4/24/2025

CITY OF CHEYENNE, WYOMING

By: _____
Patrick Collins, Mayor
Date: _____

(SEAL)

ATTEST:

Kylie Soden, City Clerk